two judges to explain their position to the house. However, the warrants for the arrest of Solomon and Justices Beg and Sehgal were withdrawn on the grounds that the assembly's intention at that stage was to ascertain the facts from them.

These decisions and counter-decisions led to much confusion and uncertainty among the police and the administrative machinery of the state. The precise nature of the relationship between the assembly and the court was unclear to most public officials. If the police escorted the two judges and Solomon to the assembly, they would be complying with the resolution of the assembly but possibly in contempt of court. If they refused to do so, the police would be complying with the court's order but defying the resolution of the assembly. The divisional commissioner of Lucknow proceeded on leave to buy time in the midst of uncertainty. He is understood to have sought legal advice on the appropriate course of action.

By this time, the episode in Uttar Pradesh was being discussed in the corridors of power in Delhi. The chief minister apprised Prime Minister Nehru of the situation. It was decided that a 'presidential reference' would be made to the Supreme Court, to enable the court to rule decisively on the authority of the assembly on the one hand, and the courts on the other, to determine the scope of the privileges of the assembly. A presidential reference made under Article 143 of the Constitution enables the President (on the instructions of the central government) to seek the opinion of the Supreme Court on questions of law or fact. This was the fifth presidential reference to the Supreme Court since the Constitution was enacted. It was interesting that the government decided that the Supreme Court (rather than the assembly or Parliament) should clarify and decide this issue.

A number of questions were referred to the Supreme Court for its consideration. These included whether Justices Beg and Sehgal had the authority to consider Keshav Singh's petition, whether Solomon and the judges were in contempt of the assembly, and whether the assembly could lawfully direct the judges and Solomon to appear before it. A bench of seven judges, led by Chief Justice Gajendragadkar, was constituted to hear the case. The composition of the bench attracted some controversy. The chief